

1.

CASE #	CASE NAME	HEARING NAME
CVPS2502630	TERRA LAGO COMMUNITY ASSOCIATION VS DESERT ACQUISITION GROUP, LLC	MOTION TO SET ASIDE ON COMPLAINT OF TERRA LAGO COMMUNITY ASSOCIATION BY TERRA LAGO COMMUNITY ASSOCIATION

Tentative Ruling: Granted.

Sanctions issued May 1, 2026 as to attorney Michael C. Knighten are vacated and set aside.

Court reviewed attorney Michael C. Knighten declaration of May 22, 2026 and found it is accurate in that while sanctions for the non response to OSC set in March 2026 was warranted there appears to be a discrepancy in the court docket and lack of notice provided for the May 1, 2026 hearing.

Court to provide notice pursuant to CCP 1019.5.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2502818	MEDINA VS GENERAL MOTORS, LLC	MOTION FOR ATTORNEYS FEES BY GILBERT P. MEDINA

Tentative Ruling: Granted in part.

Granted in reduced, but reasonable amount of \$11,990.00 for attorney fees and costs in the amount of \$1,125.50.

Defendant is ordered to pay attorney fees and costs to Plaintiff within 30 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

Plaintiff Gilbert P. Medina ("Plaintiff") brings this Song-Beverly action against Defendant General Motors, LLC ("Defendant") regarding a 2023 Chevrolet Silverado with transmission and other defects. The complaint, filed 4/15/25, asserts: (1) breach of implied warranty; (2) breach of express warranty; (3) failure to promptly repurchase; and (4) failure to timely commence repairs. The parties settled at mediation on 12/3/25.

Now, Plaintiff seeks an award of \$14,812.50 in fees (23.7 hours at \$625/hour) and \$1,425.50 in costs and expenses. The requested time includes 3 hours of anticipated work related to the fee motion. Plaintiff argues that the rates and hours billed are reasonable.

In opposition, Defendant argues that the requested rate and hours are excessive for a case that resolved quickly. Defendant asks the court to reduce counsel's rate to \$550/hour, strike 12.3 hours as excessive, clerical, templated, or anticipated.